

24STCV19743 24STCV19743

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Case Number: 24STCV19743 Hearing Date: June 25, 2026 Dept: T

24STCV19743 Artunian v Alamirad

[TENTATIVE] ORDER: Defendant Farzan Alamirad's Motion to Disqualify Counsel

is DENIED.

Plaintiff

Jasmen Artunian's Request for Monetary Sanctions is DENIED.

Introduction

Defendant Farzan Alamirad (Defendant) moved to disqualify Plaintiff Jasmen

Artunian's (Plaintiff) counsel, Katherine Rebecca Cohan (Cohan).

Plaintiff requested monetary sanctions of \$4,500.00 against Defendant or

alternatively, Plaintiff requested that their rights to seek monetary sanctions

be preserved so that a separate noticed motion can be filed/served.

Procedure

Plaintiff's Opposition Brief failed to comply line spacing format by

single-spacing the brief. Plaintiff was required to either double-space

or 1 ½ line space the brief. (Cal. Rules of Court, rule 2.108.)

Plaintiff's Counsel is warned that any future violations of the formatting rules will result in the striking of the brief.

Discussion

Defendant argued that a conflict of interest exists because of Cohan's concurrent or successive representation of Plaintiff and non-party Azadeh Honarpour (Honarpour). Defendant argued that Cohan obtained confidential information regarding Defendant's business, Gentle Biodentistry, through Cohan's representation of Honarpour in a family law action: In re Marriage of Farzan Alamirad v. Azadeh Honarpour (Super. Ct. L.A. County, pending, 22CHFL00073 (Family Law Action)). Defendant asserted that the financial documents in Gentle Biodentistry are at issue in the instant action. Because of the confidential information related to Gentle Biodentistry was to Cohan, Defendant asserts that the financial documents/information can be used to benefit Plaintiff in the instant action. Because Cohan allegedly has financial documents/information as to Gentle Biodentistry, Defendant argues that a substantial relationship exists between the instant action and the Family Law Action.

Preliminarily, Defendant's standing to raise the disqualification motion was placed into issue. Standing generally requires that the moving party be

able to allege injury, that is, an invasion of a legally protected interest. (*Angelucci v.*

Century Supper Club (2007) 41 Cal.4th 160, 175.) A “standing”

requirement is implicit in disqualification motions. Generally, before the

disqualification of an attorney is proper, the complaining party must have or

must have had an attorney-client relationship with that attorney. (*Strasbourger*

Pearson Tulcin Wolff Inc. v. Wiz Technology, Inc. (1999) 69

Cal.App.4th 1399, 1404 (*Strasbourger*).) Absent an

attorney-client relationship, the moving party must have an expectation of

confidentiality. (*Great Lakes Construction Inc. v. Burman* (2010)

186 Cal.App.4th 1347, 1356-1357; *DCH Health Services Corp. v. Waite* (2002)

95 Cal.App.4th 829, 832 (*DCH*).) “Before an attorney may be

disqualified from representing a party in litigation because his representation

of that party is adverse to the interest of a current or former client, it must

first be established that the party seeking the attorney's disqualification was

or is “represented” by the attorney in a manner giving rise to an

attorney-client relationship.” (*Civil Service Comm'n v. Superior Court* (1984)

163 Cal.App.3d 70, 76-77 (*Civil Service*).) Defendant failed

to present any facts or argument to show that Defendant and Cohan had any

attorney-client relationship or that Defendant held any expectation of

confidentiality. Cohan only represented Honarpour in the Family Law

Action. Without any facts/evidence to show any attorney client relationship or any expectation of confidentiality, Defendant failed to present sufficient facts to show standing to bring the instant motion against Plaintiff's Counsel, Cohan. Without standing to bring the motion, the motion is unpersuasive.

Without showing standing, the arguments as to substantial relationship and/or receipt of confidential information are moot.

The Motion to Disqualify is DENIED.

Plaintiff requested monetary sanctions of \$4,500.00 against Defendant per Code of Civil Procedure, sections 128.5 and 128.7. Setting aside whether a noticed motion is required for such sanctions because the motion cannot be corrected or withdrawn after the Court issued its ruling, the Court reviewed the substance of the request. Under either statute, the Court is authorized to award sanctions for bad-faith actions or tactics that are frivolous or solely intended to cause unnecessary delay. The Court finds that Defendant's motion, although unpersuasive, was not frivolous, made in bad faith, or solely intended to cause unnecessary delay because the motion presented a colorable argument based upon legal authority applied to facts. The fact that Defendant's motion was not persuasive is insufficient to show bad faith, frivolity or intent to delay. Plaintiff's

request for sanctions is unpersuasive.

Plaintiff's request for monetary sanctions is DENIED.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.